



District Court

Instructions for Filing a Motion to Expunge or Seal Record

1. Fill in the required fields in the Motion to Expunge or Seal Record – The Defendant’s name, case number, bureau of criminal identification number, the count(s), charge(s), and disposition(s) of the case, and the name of the police department that charged the case. Also, indicate whether you are moving to seal or expunge your criminal records.
2. The Clerk’s Office will fill in the hearing date for the motion. The date will be at least ten (10) days from the date the motion is filed, because you are required under the law to provide at least ten (10) days’ notice of the hearing to the Office of the Attorney General and the police department that charged the case.
3. Certify that you have provided notice to the Office of the Attorney General and the law enforcement agency that charged the case and then sign the motion.
4. In the Affidavit in Support of the Motion to Expunge or Seal Record, identify the part applicable to your motion.
 - Part One: If you were acquitted (found not guilty), the case was dismissed, a no true bill was returned, or no information was filed.
 - Part Two: If the offense has been decriminalized subsequent to the date of your conviction.
 - Part Three:
 - A: If you were convicted of a single misdemeanor offense and have not been previously convicted of or placed on probation for a felony or a misdemeanor; or
 - B: If you were convicted of more than one (1) but less than six (6) misdemeanor offenses and have not been convicted of a felony.
5. Put a check mark in the box for each statement that is true under the Part applicable to your motion (see above).
6. Sign the Affidavit in Support of the Motion to Expunge or Seal Record on the line marked “Signature of the Defendant” in the presence of a notary public or clerk. If the Motion to Expunge or Seal Record is being filed by an attorney for a decriminalized offense, an Affidavit in Support of the Motion to Expunge or Seal Record is not required.
7. Bring the Order for Expungement or Sealing of Record to the hearing.
8. If your motion is granted, all financial obligations owed (fines, fees, costs, restitution, and assessments) must be paid in full to complete the expungement process. Upon all conditions being satisfied, the clerk’s office will prepare three (3) certified copies of the order. One (1) copy is for your records, one (1) copy is for the Office of the Attorney General’s Bureau of Criminal Identification Unit (BCI), and one (1) copy is for the police department that charged the case. You are responsible for delivering the copies to these agencies.



District Court

Motion to Expunge or Seal Record

State of Rhode Island v. Defendant Maria-Alejandra O'Shaughnessy-Whitfield	Case Number	Date of Birth 1972-12-31
	Bureau of Criminal Identification Number	
☐ Murray Judicial Complex 2nd Division 45 Washington Square Newport, Rhode Island 02840-2913	☐ Noel Judicial Complex 3rd Division 222 Quaker Lane Warwick, Rhode Island 02886-0107	
☐ McGrath Judicial Complex 4th Division 4800 Tower Hill Road Wakefield, Rhode Island 02879-2239	☐ Garrahy Judicial Complex 6th Division One Dorrance Plaza Providence, Rhode Island 02903-2719	

The Defendant requests that the above-referenced case containing the following charge(s) be
☒ **expunged** ☐ **sealed**.

1. Count(s): _____ _____ _____ _____	2. Charge(s): _____ _____ _____ _____	3. Disposition(s): _____ _____ _____ _____
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The Defendant respectfully moves this honorable court that:

- ☐ Pursuant to G.L. 1956 § 12-1-12, any fingerprints, photographs, physical measurements, or other record of identification taken by the Office of the Attorney General or any other authorized law enforcement agency shall be **destroyed**, all records of the Bureau of Criminal Identification (BCI) shall be **sealed**, and all court records shall be **sealed** in accordance with G.L. 1956 § 12-1-12.1.
- ☒ All records and records of conviction relating to the conviction of the above-referenced case be **expunged** and all index and other references to the case be removed from public inspection pursuant to G.L. 1956 § 12-1.3-3(c) or (e).

An Affidavit is submitted in support of this motion (except for decriminalized offenses when the motion is filed by an attorney and the offense is not under G.L. 1956 § 31-11-18). This motion is called for a hearing on _____ at 9:00 a.m. in courtroom ____ at the court location listed above.

I hereby certify that pursuant to G.L. 1956 § 12-1-12.1(b)(1) or § 12-1.3-3(a), on _____, the Office of the Attorney General and the _____ Police Department, which originally brought this charge, have been notified of this motion and the court date is at least ten (10) days prior to the hearing date.

/s/ _____ Attorney for the Defendant or the Defendant	Rhode Island Bar Number _____ Date _____
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District Court

Affidavit in Support of Motion to Expunge or Seal Record

State of Rhode Island v. Defendant Maria-Alejandra O'Shaughnessy-Whitfield	Case Number	Date of Birth 1972-12-31
	Bureau of Criminal Identification Number	

I, the undersigned, do hereby, under oath, make this affidavit in support of my Motion to Expunge or Seal Record:

<i>Part One:</i> Acquittals, Dismissals, No True Bill, No Information	☐ That I was charged with the crime(s) listed in Box 2 of the motion. ☐ That I was acquitted or otherwise exonerated of this offense(s). ☐ That the case was dismissed against me. ☐ That a no true bill was returned. ☐ That no information was filed.
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<i>Part Two:</i> Decriminalized Offense	☐ That I was charged with the crime listed in Box 2 of the motion. ☐ That I received the disposition listed in Box 3 of the motion. ☐ That all conditions of the original criminal sentence have been completed. ☐ That I have satisfied in full any and all outstanding court-imposed and/or court-related fines, fees, costs, assessments, and/or charges. ☐ That the offense has been decriminalized subsequent to the date of my conviction.
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<i>Part Three A:</i> Single Conviction	☐ That I was charged with the crime listed in Box 2 of the motion. ☐ That I received the disposition listed in Box 3 of the motion. ☐ That the disposition listed in Box 3 of this motion is not a conviction for a crime of violence. ☐ That the charge was reclassified from a felony to a misdemeanor, if applicable. ☐ That I was convicted of a single misdemeanor offense, and I have not been previously convicted of or placed on probation for a felony or a misdemeanor. ☐ That more than five (5) years have passed from the date of the completion of my last sentence. ☐ That in the five (5) years preceding the filing of this motion, I have not been convicted of nor arrested for any felony or misdemeanor. ☐ That there are no criminal proceedings pending against me, and I have exhibited good moral character. ☐ That I have satisfied in full any and all outstanding court-imposed and/or court-related fines, fees, costs, assessments, and/or charges.
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Part

Three B:

**Multiple
Convictions**

- ☐ That I was charged with the crimes listed in Box 2 of the motion.
- ☐ That I received the dispositions listed in Box 3 of the motion.
- ☐ That none of the dispositions listed in Box 3 of this motion are convictions for a crime violence.
- ☐ That the charge was reclassified from a felony to a misdemeanor, if applicable.
- ☐ That none of the dispositions listed in Box 3 of this motion are convictions under Chapter 29 of Title 12 (Domestic Violence Prevention Act), G.L. 1956 § 31-27-2 (Driving Under the Influence of Liquor or Drugs), or G.L. 1956 § 31-27-2.1 (Refusal to Submit to Chemical Test).
- ☐ That I have not been convicted of more than six (6) misdemeanors preceding the filing of this motion and have not been convicted of a felony.
- ☐ That more than ten (10) years have passed from the date of the completion of my last sentence.
- ☐ That in the ten (10) years preceding the filing of this motion I have not been convicted of nor arrested for any felony or misdemeanor.
- ☐ That there are no criminal proceedings pending against me, and I have exhibited good moral character.
- ☐ That I have satisfied in full any and all outstanding court-imposed and/or court-related fines, fees, costs, assessments, and/or charges.

Signature of the Defendant

Date: _____

State of _____

County of _____

On this _____ day of _____, 20____, before me, the undersigned notary public, personally appeared _____

☐ personally known to me or ☐ proved to me through satisfactory evidence of identification, which was _____, to be the person who signed above in my presence, and who swore or affirmed to me that the contents of the document are truthful to the best of his or her knowledge.

Notary Public: _____

My commission expires: _____

Notary identification number: _____

ORDER FOR EXPUNGEMENT OR SEALING OF RECORD
(PROPOSED - brought to the hearing by the moving party)

THIS IS NOT A FORM PUBLISHED BY THE RHODE ISLAND JUDICIARY. Instruction 7 on page 1 of the court's own motion says "Bring the Order for Expungement or Sealing of Record to the hearing", and Rhode Island publishes no template for that order. This page is the moving party's OWN proposed order. The Court may sign it, change it, refuse it, or enter an order of its own instead.

DISTRICT COURT OF THE STATE OF RHODE ISLAND

STATE OF RHODE ISLAND

v.

Maria-Alejandra O'Shaughnessy-Whitfield

Defendant

Division and judicial complex:

Case Number:

Date of Birth: 1972-12-31

Bureau of Criminal Identification Number:

THE MOTION THIS ORDER IS PROPOSED ON

This order is proposed on the Defendant's Motion to Expunge or Seal Record filed in the above-referenced case under R.I. Gen. Laws Sec. 12-1.3-2(g) and Sec. 12-1.3-3(e), and on the Affidavit in Support of that Motion, Part Two: Decriminalized Offense.

The counts, charges and dispositions the motion asks to expunge, as they are listed in Boxes 1, 2 and 3 of the motion. Copy them from the motion; they are not filled in here because the platform has not seen the court record they come from.

1. Count: Charge: Disposition:
2. Count: Charge: Disposition:
3. Count: Charge: Disposition:
4. Count: Charge: Disposition:

Date of the hearing on the motion, as the Clerk's Office set it:

Composed by LegalEase for Maria-Alejandra O'Shaughnessy-Whitfield, as the moving party's own proposed order. It is not an official Rhode Island form, and no part of it is a finding, a grant, a denial, a signature, an entry, a certification or a seal.

Route: obligation:track-pathway:RI:ri_decriminalized:path-g-decriminalized-offense-expungement

.....

EVERYTHING BELOW THIS LINE IS THE COURT'S. It is left blank on purpose. No finding, no grant, no denial, no condition, no signature, no date of entry, no certification and no seal is written here by the moving party or by LegalEase.

The Court's findings:

.....
.....
.....

☐ The motion is GRANTED. ☐ The motion is DENIED.

If the motion is granted, the Court orders the relief it marks below:

☐ that all records and records of conviction relating to the conviction of the above-referenced case be expunged and all index and other references to the case be removed from public inspection pursuant to G.L. 1956 Sec. 12-1.3-3(c) or (e);

☐ other relief the Court orders:

Any further terms or conditions the Court sets:

.....
.....

Entered as an order of the Court:

..... Date of entry:

Justice / Judge

Certification or attestation by the Clerk:

FILING INSTRUCTIONS

Motion to Expunge an Offence Decriminalized After Conviction (R.I. Gen. Laws Secs. 12-1.3-2(g), 12-1.3-3(e))

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT IS IN THIS PACKET.

- ri_decriminalized-primary-filing-1: the state's own filing instructions and Motion to Expunge or Seal Record, as published, with your name and date of birth in the caption and every case fact left for you
- ri_decriminalized-decriminalization-affidavit-3: the state's own Affidavit in Support of the motion, pages 3 and 4 of the same published form, with your name and date of birth in its caption and not one sworn box marked
- ri_decriminalized-proposed-order-2: the proposed order the court's own instruction 7 tells you to bring to the hearing. Rhode Island publishes no template for it, so it is composed here; it says on its face that it is not an official Rhode Island form, and every line that is the court's is blank
- ri_decriminalized-filing-instructions-4: where it goes, which Part of the affidavit is yours, what it costs, who must be told and when, what to bring to the hearing, and what you deliver after a grant

THE ROUTE. Clear a conviction for something that is no longer a crime. Motion to Expunge an Offence Decriminalized After Conviction (R.I. Gen. Laws Secs. 12-1.3-2(g), 12-1.3-3(e)). Authority: R.I. Gen. Laws Sec. 12-1.3-2(g); R.I. Gen. Laws Sec. 12-1.3-3(e).

Separate from the marijuana route, a person may file for expungement of an offence that was decriminalized after the date of conviction. The court holds a hearing and may require the petitioner to demonstrate that the prior conviction would qualify as a decriminalized offence under current Rhode Island law, which may be done by the petitioner's own affidavit. Where the conditions of the original sentence are complete and required fines, fees and costs are paid in full, the court orders the expungement without cost to the petitioner. There is no waiting period.

WHERE IT GOES. The court where the conviction occurred. File the correct court's Motion to Expunge or Seal Record with the proposed order, with the clerk of the court where the conviction occurred.

Mark the one judicial complex on the motion where your case was heard. The District Court form lists four; the platform has not seen your docket and does not know which one is yours.

THE AFFIDAVIT, AND THE ONE PART THAT IS YOURS.

Page 1 of the court's form, instruction 4, tells you to identify the Part of the affidavit applicable to your motion. For this route that is Part Two: Decriminalized Offense, which applies where the offence has been decriminalized since the date of the conviction.

Instruction 5 then says: "Put a check mark in the box for each statement that is true under the Part applicable to your motion." NOT ONE OF THOSE BOXES IS MARKED FOR YOU, in that Part or in any other. Each one is a statement you swear to under oath about your own record, your own unpaid balances, whether any case is pending against you, and your own character. LegalEase holds no Rhode Island criminal history record and no court docket for anyone, and it will not swear for you. Read each statement in your Part, and mark it only if it is true of your case.

If a statement in your Part is not true of your case, do not mark it and do not file until you have advice. An unmarked box is a gap; a marked box that is not true is a false statement under oath.

WHERE IT IS SWORN. Required for the affidavit. The petitioner signs the affidavit before a notary or clerk, and any decriminalization affidavit the court requires.

The whole notarial certificate at the foot of the affidavit - the state, the county, the day, the month, the year, the name of the person who appeared, the identification relied on, the notary's signature, commission expiry and identification number - is completed by the notary or the clerk who takes your oath, at the moment you swear it. None of it is filled in here.

WHAT IT COSTS.

The committed record for this route states: "No cost to the petitioner. Where the conditions of the original sentence are complete and all fines, fees and costs related to the conviction are paid in full, the court orders the expungement without cost."

Read that carefully. The no-cost expungement is **CONDITIONED** on the original sentence being complete and every fine, fee and cost related to the conviction being paid in full. It is not a fee waiver and it does not clear an outstanding balance. Ask the clerk for a record showing the balance is zero before you file.

DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Rhode Island BCI criminal history record. From: Rhode Island Department of Attorney General, Bureau of Criminal Identification. Request your criminal history from the Attorney General's BCI unit; the BCI number is required on the court form.
- Court docket and judgment showing the conviction and the original sentence. From: Clerk of the court where the conviction occurred. Ask the clerk for the docket and judgment, which show the offence charged and the conditions of the original sentence.
- Proof that fines, fees and costs are paid in full. From: Clerk of the sentencing court. Ask the clerk for a record showing the balance is zero. The no-cost expungement is conditioned on this.

THE WAITING PERIOD AND THE LOOKBACK, AS THE COMMITTED RECORD STATES THEM.

- Offence decriminalized after the date of conviction, original sentence conditions complete and financial obligations paid in full: none

THE HEARING, AND THE PAGE YOU MUST NOT LEAVE AT HOME.

Page 1 of the court's form, instruction 7, says: "Bring the Order for Expungement or Sealing of Record to the hearing." Rhode Island publishes no template for that order, so this packet contains one composed for you. It is NOT an official Rhode Island form, it says so on its own face, and the court may sign it, change it, refuse it or use an order of its own. Everything on it that is the court's - the findings, whether the motion is granted or denied, any terms the court sets, the signature, the date of entry, the certification - is blank, because none of that is yours or ours to write.

WHO IS EXCLUDED FROM THIS ROUTE, IN THE COMMITTED RECORD'S OWN WORDS.

- Any offence that has not been decriminalized under current Rhode Island law.
- Any case where the conditions of the original sentence are not complete.
- Any case where required fines, fees and costs have not been paid in full.
- Federal, out-of-state, military and tribal records.

WHEN TO STOP AND GET HELP INSTEAD.

The committed track registry records these as the points where self-help ends, in its own words:

- Establishing that the offence was decriminalized, which is a legislative-history question and not answerable from the docket.
- The relationship between this route and the Sec. 12-1.3-1(5) reclassification overlay; decriminalization and reclassification are different mechanisms with different consequences and a participant may have either.
- Incomplete original sentence conditions, or unpaid fines, fees and costs.
- Immigration exposure.
- Federal, out-of-state, military and tribal records.

WHO MUST BE TOLD, AND WHEN.

The motion's own certification line says that, under G.L. 1956 Sec. 12-1-12.1(b)(1) or Sec. 12-1.3-3(a), the Office of the Attorney General AND the police department that originally brought the charge have been notified of the motion, and that the court date is at least ten (10) days after they were notified.

THE ORDER OF EVENTS MATTERS, AND IT IS NOT THE ORDER THE PAGE READS IN.

1. You file the motion. 2. The Clerk's Office sets the hearing date, at least ten days out - instruction 2 on page 1 says the Clerk's Office fills that date in, not you. 3. You give notice to the Office of the Attorney General and to the police that brought the charge. 4. Only then do you complete the certification line: the date you gave notice, and the name of that police force.

Nothing on that certification line is filled in for you. A certification that notice has been given, signed and dated before notice was actually given, is a false statement to a court.

NO ADDRESS IS PRINTED HERE. The platform holds no service address for the Office of the Attorney General and none for any Rhode Island police department, and it does not guess one. Ask the clerk of the District Court division where you file how that division expects notice to be given and to whom, and get the addresses from the clerk or from the offices themselves.

WHAT HAPPENS AFTER THE COURT GRANTS THE MOTION - AND THE PART THAT IS YOURS TO DO.

The court's own form says it, on page 1, instruction 8: "If your motion is granted, all financial obligations owed (fines, fees, costs, restitution, and assessments) must be paid in full to complete the expungement process. Upon all conditions being satisfied, the clerk's office will prepare three (3) certified copies of the order. One (1) copy is for your records, one (1) copy is for the Office of the Attorney General's Bureau of Criminal Identification Unit (BCI), and one (1) copy is for the police department that charged the case. You are responsible for delivering the copies to these agencies."

So, in order:

1. PAY EVERYTHING OFF. Fines, fees, costs, restitution and assessments must be paid in full before the expungement is complete. A granted motion with an unpaid balance is not a finished expungement.
2. ASK THE CLERK'S OFFICE FOR THE THREE CERTIFIED COPIES. The clerk's office prepares them once every condition is satisfied. Certified copies are the clerk's to make; do not photocopy the order yourself and expect it to be accepted.
3. KEEP ONE COPY.
4. DELIVER ONE COPY to the Office of the Attorney General's Bureau of Criminal Identification Unit.
5. DELIVER ONE COPY to the police department that charged the case.
6. THE DELIVERY IS YOURS, NOT THE COURT'S. The form says you are responsible for delivering the copies. Until they arrive, those records are not expunged, whatever the order says.

Keep proof of what you delivered and when.

WHAT THIS PACKET IS NOT. It is the state's own motion and affidavit, a proposed order composed for the hearing because the state publishes none, and instructions. It is not legal advice, it is not filed for you, and it does not decide whether you are eligible.

Route: obligation:track-pathway:RI:ri_decriminalized:path-g-decriminalized-offense-expungement